jurisprudent would indignantly deny to be legislation at all'. It was a submission that was to be of no avail. Not only did Viscount Dunedin dismiss the appeal in a single short judgment of under two pages, without giving Pritt leave to appeal to argue the matter in a full hearing before the Board of the Privy Council but he did so on grounds that were manifestly wrong. He decided that, 'although the Governor-General thought it fit to expound the reasons which induced him to promulgate this Ordinance, this was not in their Lordships opinion in any way incumbent on him as a matter of law'.[2] This is simply wrong as a matter of law. Not only did the governor-general have to give reasons—and did in fact attempt to do so—he had to give good reasons upon which he was calling out an 'emergency'. The Privy Council's decision is a striking example of coercive colonial legalism being used to undermine the rule of law and to administer a judicial reprisal on individuals before it.

Unbeknownst to Pritt, he was to be vindicated when a hundred years after he was born a British court in 2007 in a case called *Bancoult*[3] held that the phrase 'peace, order and good government' is one which 'has a long legislative pedigree' and 'has become a term of art in the sense that it is regularly used without further explanation to denote the delegation of large but undefined powers to a nominated rule-maker'. It remained, nevertheless, 'a power of the greatest importance carrying commensurate responsibilities' with its usage. This means that 'it has limits, even if these are self-imposed'. Emphasizing the principle of territoriality, which distinguished between the United Kingdom and its colonial territories, the judge Sedley LJ, explained how these limits are 'directed to the wellbeing of a dependent territory and its population' as a way of deciding 'what is best for a colony and to affirm that, like every discretion, it is limited by and to its own expressed objects'. The courts could not just rubber-stamp a decision but had to bear in mind that 'it is their constitutional function to decide whether what has been enacted (or what it is proposed to enact) is rationally and legally capable of providing for a colony's wellbeing. If it is not, then it falls outside the prerogative power'. In this way, '[t]he governance of each colonial territory is in constitutional principle a discrete